



INDIAN LAW & DEALMAKING · 16 SEPTEMBER 2026

Five moves shaping the board now.

- › SEBI freezes cross segment derivatives gains
- › NCLT Chennai covers overseas personal guarantor
- › Delhi High Court validates reverse invoice arbitration
- › NCLT New Delhi clears Mawana scheme
- › NCLT Delhi bars misnamed IBC liability

SWIPE →



SEBI freezes ₹28.12 crore in derivatives case

On 16 September 2026, Whole-Time Member Kamlesh Chandra Varshney issued an ex parte interim order restraining Prsaar Sampada, Chaubara Eats, and four individuals. The regulator acted over alleged cross-segment stock futures and options manipulation.

THE READ

This live enforcement signal deploys market integrity powers before merits are settled. It targets linked derivatives strategies with immediate asset freezes.



NCLT Chennai admits overseas guarantor IBC case

On 7 September 2026, NCLT Chennai admitted a Section 95 IBC application filed by M. Gagan Bothra against Senthil Kumar, guarantor for PRC International Hotels, involving ₹14.92 crore in dues. The bench held that foreign residence does not limit the Code.

THE READ

This ruling secures cross-border recovery pathways. Lenders can target overseas resident guarantors and invoke Section 235 for foreign authority assistance.



ARBITRATION · DELHI HIGH COURT

03 / 05

Delhi High Court enforces reverse invoice arbitration

On 9 September 2026, Justice Om Prakash Shukla referred Tinna Rubber and Infrastructure versus Pankaj Gandhi to sole arbitration under Section 11. The court ruled that an arbitration clause on the reverse of invoices is valid when acted upon through part-payments.

THE READ

This decision streamlines supply-chain dispute resolution. Conduct and transactional records establish a prima facie arbitration agreement despite lack of a separate signature.



M&A · NCLT NEW DELHI

04 / 05

NCLT New Delhi sanctions Mawana amalgamation

On 15 September 2026, NCLT New Delhi sanctioned the scheme of amalgamation between Mawana Foods Private Limited and Mawana Sugars Limited. The contemporaneous source did not state transaction consideration figures.

THE READ

This approval clears a listed-company group consolidation. Parties must now execute procedural steps under the corporate scheme framework.



INSOLVENCY · NCLT DELHI

05 / 05

NCLT Delhi rejects misnamed company IBC petition

On 15 September 2026, NCLT Delhi dismissed IIFL Home Finance versus MMC Realtech Solutions under Section 7. The bench ruled that mere inclusion in facility documentation without proof of being the actual financial obligor cannot trigger insolvency.

THE READ

This judgment constrains overbroad lender filings. Tribunals will not substitute IBC proceedings for mortgage enforcement against companies merely named in loan papers.



THE THROUGH-LINE

Recent regulatory and judicial interventions highlight a strict adherence to documentary substance and procedural reach across Indian corporate law. SEBI and the tribunals are actively closing enforcement loopholes whether involving cross-segment derivatives manipulation, foreign resident guarantees, or invoice terms. For boards and dealmakers, this environment demands meticulous contract execution and rigorous risk mapping before initiating recovery or restructuring actions.





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